

## 26SMCV00311 26SMCV00311

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-23

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Case Number: 26SMCV00311 Hearing Date: September 23, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

RICARDO GONZALEZ,

Plaintiff,

v.

RICHARD KAYNE, et al,

Defendants.

Case No.: 26SMCV00311

Hearing Date: September 23, 2026

order RE:

PLAINTIFF'S MOTION TO QUASH

DEPOSITION SUBPOENA

issued by defendantS to AMTRUST NORTH AMERICA, INC.

This is a negligence and premises liability case. Plaintiff claims that while he was a lawful guest on Defendants' property, a gate or fence fell on him, causing injuries. Plaintiff alleges that Defendants failed to properly maintain the gate/fence.

This hearing is on Plaintiff's motion to quash a deposition subpoena issued by Defendants to Amtrust North America, Inc. in c/o United Agent Group Inc. (the "Subpoena"). The Subpoena seeks "any and all" of Plaintiff's worker's compensation records, including but not limited to, claim files, medical records, medical billing, and benefit records. Plaintiff argues that the Subpoena is overly broad and invades his constitutional right to privacy.

This Department's rules require that on a discovery motion, the parties must meet and confer to informally resolve their dispute, and when that fails, the parties must attend an informal discovery conference (IDC). There is no record of an IDC on the issues raised in Plaintiff's motion to quash. Accordingly, the Court denies the motion to quash without prejudice.

IT IS SO ORDERED.

DATED: September 23, 2026 \_\_\_\_\_

Edward B. Moreton, Jr.

Judge of the Superior Cou